

1 Short Title and Definitions

1.1 Short Title and extent

- (i) These bye-laws will be called... (Name of Authority)... Development Authority Building Construction and Development Byelaws 2025.
- (ii) These bye-laws will be applicable to the entire ...(Name of development area)... development area.

1.2 Definitions

Sl.	Item	Definition
1	Access	“Access” or “Means of Access” or “Approach Road” means a clear approach to a plot or a building from a road/street. (This refers to any road, street, lane, passage giving access to the plot being a right of way, and includes such features as drain, median strip, shoulder or berm, bridge, culvert, burrow pit etc. between the two boundary walls of the premises on either sides of such right of way or, where a street alignment has been fixed and the area within such alignment has been acquired by authority or other agency/ institution and the alignment has been demarcated or is capable of being demarcated up to such alignment.)
2	Act	“Act” unless specified otherwise, means the Uttar Pradesh Urban Planning and Development Act, 1973.
3	Affordable Housing Scheme	“Affordable Housing Scheme” refers to government initiatives or programs designed to make housing accessible and affordable for low to middle-income individuals and families, often through subsidized housing, interest rate reductions, or other financial incentives. E.g. Pradhan Mantri Awas Yojana (PMAY) and similar programs.
4	Ancillary Use	“Ancillary Use” means any use of the premises subordinate to the principal use and incidental to the principal/ main use.
5	Addition, Revision and/or Alteration	“Addition, Revision and/or Alteration” means a change from one occupancy to another, or a structural change including an addition to the area or change in height or the removal of part of building, or any change to the structure, such as the construction or removal or cutting into of any wall or part of a wall, partition, column, beam, joist, floor including a mezzanine floor or other support, or a change to or closing of any required means of access ingress or egress as provided in these Bye-Laws.
6	Air-conditioning	“Air-conditioning” means the process of treating air so as to control simultaneously its temperature, humidity, purity, distribution and air movement and pressure to meet the requirements of the conditioned space.
7	Amenity	“Amenity” includes roads, water supply, street lighting, drainage, sewerage, development of public parks and open spaces, solid waste management and disposal, sewage treatment plant and other public works including utilities, services, and such other conveniences as the State Government may, by notification in the Gazette, specify to be an amenity for the purposes of UP Urban Planning and Development Act, 1973.
8	Application	“Application” means an application made in such form as may be prescribed by the Authority from time to time.
9	Approved	“Approved” means as approved/sanctioned by the Authority.
10	Area	“Area” in relation to a building means the superficies of a horizontal section thereof made at the plinth level inclusive of the external walls and of such portions of the party walls as belong to the building.

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11	Atrium	“Atrium” means the internal court/ entrance hall of a building, which is sky lighted or covered with a transparent permanent structure on the terrace floor.
12	Authority	“Authority” means the Urban Development Authority which has been created under the provisions of Uttar Pradesh Urban Planning and Development Act, 1973 or the Uttar Pradesh Housing and Development Board established under the Uttar Pradesh Awas Evam Vikas Parishad Act, 1965.
13	Balcony	“Balcony” means a horizontal projection, cantilevered or otherwise including a parapet handrail, balustrade, to serve as a passage or sit out place.
14	Basement or Cellar	“Basement or Cellar” means the lower storey of a building, below or partly below ground level, with one or more than one levels. The maximum height of the building above ground level shall not be more than 1.20 meters.
15	Bazaar Street	“Bazaar Street” means a linear mixed-use construction along the road which is identified in the Master Plan/Zonal Plan.
16	Building	“Building” means a structure constructed with any materials whatsoever for any purpose, whether used for human habitation or not, and includes: (i) foundation, plinth, walls, floors, roofs, chimneys, plumbing and building services, fixed platforms etc., (ii) verandahs, balconies, cornices, projections etc., (iii) parts of a building or anything affixed thereto; (iv) any wall enclosing or intended to enclose any land or space, sign and outdoor display structures; etc., (v) tanks constructed or fixed for storage of chemicals or chemicals in liquid form and for storage of water, effluent, swimming pool, ponds etc., (vi) all types of buildings as defined under the ‘use group or occupancy’ or based on ‘design, height or other features’, except tents, shamianas and tarpaulin shelters erected temporarily for temporary purposes (for less than three months) and ceremonial occasions, shall be considered to be "buildings".
		Types of buildings based on use of premises or activity (Use group or Occupancy):
		(a) “Residential building” includes a building in which sleeping and living accommodation is provided for normal residential purposes, with cooking facilities and includes one or more family dwellings, apartment houses, boarding houses, flats, and private garages of such buildings.
		(b) “Educational buildings” includes a building exclusively used for a school or college or training institution recognized by appropriate board or university or any other competent authority, involving assembly for instruction, education or recreation incidental to educational use, and including a building for such other uses as research institution. It shall also include quarters for essential staff required to reside in the premises, and building used as a hostel captive to an educational institution whether situated in its campus or outside.
		(c) “Institutional buildings” includes a building used for such purposes as hospital, nursing home, health center or other treatment or care of persons suffering from physical or mental illness, handicap, disease or infirmity, care of orphans, abandoned women, children and infants, convalescents, destitute or aged persons and for penal or correctional detention with restricted liberty of inmates ordinarily providing sleeping accommodation and includes dharmshalas, hospitals, sanatoria, custodial and penal institutions such as jails, prisons, mental hospitals, reform homes, etc.

Sl.	Item	Definition
		(d) “Assembly Building” includes a building or part thereof, where groups of people (not less than 50) congregate or gather for amusement, recreation, social, religious, patriotic, civil, travel and related purposes, and this includes buildings such as theatre, cinema hall, community hall, auditorium, exhibition hall, museum, skating rink, gymnasium, , eating or boarding houses, place of worship, dance hall, clubs, gymkhanas and passenger station/ terminals of air, land or other public transportation services, amusement park, etc.
		(e) “Mercantile/Commercial Building” includes a building or part thereof used for shops, stores, restaurants, markets for display and sale of wholesale or retail goods or merchandise including office, storage and service facilities incidental thereto and located in the same building.
		(f) “Office/business building” includes a building or part thereof used principally for transaction of business and/or keeping of accounts and records including offices, banks, professional establishments, court houses, etc., if their principal function is transaction of business and/or keeping of books and records.
		(g) “Industrial building” includes a building or part thereof wherein products or material are fabricated, assembled or processed, such as assembly plants, laboratories, power plants, refineries, gas plants, mills, dairies and factories, etc.
		(h) “Storage building” includes a building or part thereof used primarily for storage or shelter of goods, wares, merchandise and includes a building used as a warehouse, cold storage, freight depot, transit shed, store house, public garage, hanger, truck terminal, grain elevator, silos, barn and stables.
		(i) “Hazardous building” includes a building or part thereof used for –(a) storage, handling, manufacture or processing of radioactive substances or highly combustible or explosive materials or products which are liable to burn with extreme rapidity and/or producing poisonous fumes or explosive emanations, or (b) storage, handling, manufacture or processing of which involves highly corrosive, toxic or noxious alkalis, acids, or other liquids, gases or chemicals producing flame, fumes, and explosive mixtures, etc., or which result in division of matter into fine particles capable of spontaneous ignition.
		(j) “Mixed Use Building” means a building partly used for non-residential activities and partly for residential purpose or a mix of two non-residential activities.
		(k) “Wholesale Establishment” means an establishment wholly or partly engaged in wholesale trade and manufacture, wholesale outlets, including related storage facilities, warehouses and establishments engaged in truck transport, including truck transport booking agencies.
		Types of buildings based on design, height and other features:
		(l) “Detached Building” includes a building with walls and roofs independent of any other building and with open spaces (defined as per these byelaws) on all sides within the same plot.
		(m) “Multi-Storeyed Building or High-rise Building” means building above four storeys, and/or a building exceeding 15 meters or more in height (without stilt) and 17.5 meters (including stilt).
		(n) “Semi-detached Building” means building detached on three sides with open space as specified in these regulations.
		(o) “Group Housing” include group of residential buildings or multi-storey buildings having one or more independent residential units on each

Sl.	Item	Definition
		floor and in which there is sharing and co-ownership of land and services, open space and transportation routes.
		(p) “Multiplex” means a building complex intended for the purpose of commercial, cultural and recreational activities with a minimum of two cinema halls.
		(q) “Special Building” includes all buildings like assembly, industrial, buildings used for wholesale establishments, hotels, hostels, hazardous, mixed occupancies with any of the aforesaid occupancies and centrally air-conditioned buildings having total built up area exceeding 500 sq m.
		(r) “Multi Level Car parking” means a building partly below ground level having two or more basements or above ground level, primarily to be used for parking of cars, scooters, or any other type of light motorized vehicle.
		(s) “Stand-alone factory” refers to a manufacturing unit that operates independently, with its own facilities and processes, rather than being part of a larger industrial complex or park. As per the Factories Act, 1948, means any premises where ten or more workers are working, or were working on any day of the preceding twelve months, and in any part of which a manufacturing process is being carried on with the aid of power.
		(t) “Flatted factory” means a multi-story industrial building (non-polluting in nature) designed to accommodate several businesses, each occupying a separate unit, for activities like manufacturing, assembly, and storage. Flatted factories are developed to encourage industrial growth and make land usage more efficient.
		(u) “Single-Unit” refers to residential building having one independent residential unit on each floor or combination of floors with three or less storeys and height not exceeding 15-meters.
		(v) “Multi-Unit” refers to residential building having one or more independent residential units on each floor with four or less storeys and height not exceeding 17.5-meters (including mandatory stilts).
		(w) “Other Buildings” means any other building which is not covered in the above.
17	Building Height	“Building Height” or “Height of building” means the vertical distance measured (i) In the case of flat roofs above average level of the front road and continuance to the highest point of the building, (ii) In case of pitched roofs up to the point where the external surface of the outer wall intersects the finished surface of the sloping roof and (iii) In the case of gables facing the road midpoint between the eaves level and the ridge. Architectural features serving no other function except that of decoration shall be excluded for the purpose of measuring heights. The height of the building shall be taken up to the terrace level for the purpose of fire safety requirement.
18	Building Envelope	“Building Envelope” means the horizontal spatial limits up to which a building may be permitted to be constructed on a plot. It is the residual area after leaving the setbacks prescribed for a plot, within which construction is permissible as per rules.
19	Building Line	“Building Line” means the line up to which the plinth of building adjoining a street or an extension of a street or on a future street may lawfully extend and includes the lines prescribed, if any, in any scheme and/or layout plan. The building line may change from time-to-time as decided by the Authority.
20	Built-up area (Master Plan)	“Built up area (Master Plan)” in the context of Master Plan means such densely populated area situated within the development area, most of

Sl.	Item	Definition
		which has been developed as commercial, industrial, residential, or other areas. Here, all the necessary facilities like roads, water supply, sewerage, electricity supply etc. are available and have been demarcated as built-up area by the authority under its master plan.
21	Built-up area (Building)	“Built-up area (Building)” in the context of building construction refers to the total covered area on all floors of an immovable property or building.
22	Canopy	“Canopy” shall mean a cantilevered projection from the face of the wall over an entry to the building at the lintel or slab level provided that: (i) It shall not project beyond the plot line, (ii) It shall not be lower than 2.3 meters when measured from the ground, and (iii) There shall be no structure on it and the top shall remain open to sky.
23	Carpet Area	“Carpet Area” means the net usable floor area of an apartment, excluding the area covered by the external walls, areas under services shafts, exclusive balcony or verandah area and exclusive open terrace area, but includes the area covered by the internal partition walls of the apartment.
24	Construction	“Construction” means any erection of a structure or a building, including any addition or extension thereto either vertically or horizontally, but does not include, any reconstruction, repair and renovation of an existing structure or building, or, construction, maintenance and cleansing of drains and drainage works and of public latrines, urinals and similar conveniences, or, the construction and maintenance of works meant for providing supply of water for public, or, the construction or maintenance, extension, management for supply and distribution of electricity to the public; or provision for similar facilities for publicity.
25	Covered Area	“Covered area” means the covered floor area above the plinth level over which a building is constructed. The following structures shall not be included under the covered area: (a) Garden, rockery, well and any structure related to a well, plant nursery, water pool, uncovered swimming pool, platform around a tree, tank, fountain, bench, open platform. (b) Drainage culvert, catch-pit, gully pit, chamber, gutter, etc. (c) Compound wall, entrance gate, floorless porch and portico canopy, slide, swing, uncovered stairs, uncovered ramp etc. (d) Watchman booth, pump-house, garbage shaft, electrical cabin/sub-station and such other utilities structures related to various services.
26	Development	“Development” - ‘Development’ with grammatical variations means the carrying out of building, engineering, mining or other operations, in, or over, or under land or water, on the making of any material change, in any building or land, or in the use of any building, land, and includes re-development and layout and subdivision of any land and ‘to develop’ shall be construed accordingly.
27	Drain	“Drain” - A conduit or channel for the carriage of storm water, sewage, wastewater or other waterborne wastes in a building drainage system.
28	Drainage System	“Drainage system” - A system or a line of pipes, with their fittings and accessories, such as manholes, inspection chambers, traps, gullies, floor traps used for drainage of building or yards appurtenant to the buildings within the same cartilage; and includes an open channel for conveying surface water or a system for the removal of any wastewater.
29	Dwelling	“Dwelling” - A building or a portion thereof which is designed or used wholly or principally for residential purposes for one family.
30	Encroachment	“Encroachment” - means an act to enter into the possession or rights either of permanent or temporary nature on a land or built-up property of local body/authority or state/ central Government.

Sl.	Item	Definition
31	Enclosed Staircase	“Enclosed Staircase” - means a staircase separated by fire resistant walls and doors from the rest of the building.
32	Existing Building	“Existing Building” - A building or structure existing in authorized manner with the approval of the Authority before the commencement of these Byelaws.
33	Existing Use	“Existing Use” - Use of a building or structure existing in authorized manner with the approval of the Authority before the commencement of these Byelaws.
34	Exit	“Exit” - A passage channel or means of egress from the building, its storey or floor to a street or, other open space of safety; whether horizontal, outside and vertical exits meaning as under:- (i) Horizontal exit means an exit, which is a protected opening through or around a fire well or bridge connecting two or more buildings. (ii) Outside exit mean an exit from building to a public way to an open area leading to a public way or to an enclosed fire-resistant passage leading to a public way. (iii) Vertical exit means an exit used for ascending or descending between two or more levels including stairway, fire towers, ramps and fire escapes.
35	External Wall	“External Wall” means an outer wall of a building not being a party wall even though adjoining to a wall of another building and also means a wall abutting on an interior open space of any building.
36	Floor	“Floor” means the lower surface in a storey on which one normally walks in a building and does not include a mezzanine floor. The floor at ground level with direct access to a street or open space shall be called the ground floor; the floor above it shall be termed as floor-1, with the next higher floor being termed as floor- 2, and so on upwards.
37	Floor Area	“Floor area” means the area covered on any floor of a building.
38	Floor Area Ratio	“Floor Area Ratio (FAR)” means the quotient obtained by dividing the combined covered area (plinth area) of all floors, excepting areas specifically exempted under these regulations, by the total area of the plot, viz.: - Floor Area Ratio (FAR) = Total covered area on all floors/ Plot Area.
		(a) “Compensatory FAR” means the additional FAR allowed on the plot up to the specified limit to compensate for the land being transferred free of cost by the landowner from the private plot to the Authority for right-of-way/road expansion or public facilities. or The FAR received by the owner from the Authority as a compensation for surrender of land to the government body without any monetary compensation and free from encumbrances.
		(b) “Purchasable FAR” means the additional FAR permissible to the extent specified over the permissible FAR in the Master Plan / Regional Plan / Building Construction and Development Byelaws, which can be purchased by the applicant on payment of prescribed fee as per Chapter-9 of the byelaws.
		(c) “Premium purchasable FAR” means the additional FAR permissible to the extent specified over the purchasable FAR in the Master Plan/ Regional Plan/ Building Construction and Development Byelaws, as per Chapter-9 of the byelaws.
39	Fire Lift	“Fire Lift” - Means a special lift designed for the use of fire service personnel in the event of fire or other emergency.
40	Footing	“Footing” - A foundation unit constructed in brickwork, stone masonry or concrete under the base of a wall or column for the purpose of distributing the load over a larger area.

Sl.	Item	Definition
41	Foundation	“Foundation” - A substructure supporting an arrangement of columns or walls in a row or rows transmitting the loads to the soil
42	Gallery	“Gallery” - An intermediate floor or platform projecting from a wall of an auditorium or a hall providing extra floor area, and/additional seating accommodation and includes the structures provided for seating in stadia.
43	Green Building	“Green building” means a building which has less water usage, proper energy efficiency, conservation of natural resources, minimum generation of waste and provides healthy environment to the occupants as compared to conventional building.
44	Ground Floor	“Ground Floor” - shall mean storey, which has its floor surface nearest to the ground around the building. A building may have more than one ground floor:
		“Upper Ground Floor” refers to a floor that is situated above the ground level but is not considered a full first floor or higher. It can be slightly elevated compared to the standard ground floor and is usually used in buildings where the terrain or design requires a split-level approach. “Lower Ground Floor” refers to a floor which has more than half of its height above the mean ground level and rest of the height below the mean ground level.
45	Habitable Room	“Habitable Room” means a room occupied or designed for occupancy by one or more persons for study, living, sleeping, eating, kitchen if it is used as a living room, but not including bathrooms, water-closet compartments, laundries, serving and store pantries, corridors, cellars, attics, and spaces that are not used frequently or during extended periods.
46	Layout plan/ Sub-division plan	“Lay-out plan/sub-division plan” means sub-dividing of any land or part thereof into more than one plot for sale or otherwise, in which the configuration of roads, measurement of plots along with set-back lines and method of development (e.g. row-housing, semi-detached detached group housing) should be shown and details of size, use, area of all the plots should be given."
47	Licensed Technical Professional	“Licensed Technical Person (LTP)” means a qualified professional (Architect/ Town Planner/ Engineer/ Supervisor) who is registered under the building construction and development byelaws or registered under any body constituted under any Act under which the said profession is governed. The qualifications and competence requirements for registration of professionals as ‘Licensed Technical Person’ or LTP, shall be as per Chapter-14 of the byelaws.
48	Lift	“Lift” - An appliance designed to transport persons or materials between two or more levels in a vertical or substantially vertical direction by means of a guided car or platform. The word ‘elevator’ is also synonymously used for ‘lift’.
49	Lobby	“Lobby” - means a covered space in which all the adjoining rooms open.
50	Loft	“Loft” means an intermediate floor between two floors or a residual space in a pitched roof above normal level constructed for storage with maximum clear height of 1.5 meters.
51	Master Plan	“Master Plan” means a Master Plan formulated under the UP Urban Planning and Development Act, 1973 or the Uttar Pradesh Special Area Development Authorities Act, 1986 for any town, approved and notified by the State Government.
52	Means of Escape	“Means of Escape” - An escape route provided in a building for safe evacuation of occupants.

Sl.	Item	Definition
53	MCLR	“MCLR, or Marginal Cost of Funds-Based Lending Rate” , is the minimum interest rate below which banks cannot lend, determined by the Reserve Bank of India (RBI) based on the bank's cost of funds and other factors.
54	Mezzanine Floor	“Mezzanine Floor” means an intermediate floor between two floors of any storey forming an integral part of floor below.
55	Mumty or stair cover	“Mumty or Stair Cover” - A structure with a covering roof over a staircase and its landing built to enclose only the stairs for the purpose of providing protection from weather and not used for human habitation.
56	Non-Built-up area	“Non-Built-up area” is the area other than Built-up area (Master Plan) defined above.
57	Occupancy	“Occupancy or use” - The principal occupancy/ use for which a building or a part of a building is intended to be used. For the purposes of classification of a building according to occupancy, an occupancy shall be deemed to include the subsidiary occupancies which are contingent upon it. “Mixed occupancy” buildings being those in which more than one occupancy is present in different portions of the buildings.
58	Open to sky (OTS)	“Open to sky” means an area forming an integral part of a building left open to the sky.
59	Owner	“Owner” means a person who has legal rights over any land or building or receives rent or is entitled to receive rent in case the premises are on rent and will also include the following: (1) Any agent or person who receives rent on behalf of the owner, (2) Any agent or person who receives rent or is entrusted with the management of any land or building for religious or charitable purposes, (3) Any receiver or manager appointed by a court of competent authority who has been given the charge/authority of exercising the rights of the owner in the premises.
60	Parapet	“Parapet” - A low wall or railing built along the edge of a roof or a floor.
61	Park and Open space	“Park and open space” means a space which is open and un-built or which has been laid out and developed as a public park or garden.”
62	Parking Space	“Parking space” - An enclosed or unenclosed covered or open area sufficient in size to park vehicles. Parking spaces shall be served by a driveway connecting them with a street or alley and permitting ingress and egress of vehicles.
63	Partition Wall	“Partition Wall” includes (i) A wall forming part of a building and being used or constructed to be used in any part of the height or length of such wall for separation of adjoining buildings belonging to different owners or constructed or adopted to be occupied by different persons; or (ii) A wall forming part of a building and standing in any part of the length of such wall, to a greater extent than the projection of the footing on one side or ground of different owners.
64	Permission or Permit	“Permission or Permit” - A valid permission or authorization in writing by the competent Authority to carryout development or a work regulated by the Byelaws.
65	Plinth	“Plinth” means the portion of a structure between the surface of the surrounding ground surface of the floor immediately above the ground.
66	Plinth Area	“Plinth Area” means the built-up covered area measured at the floor level of the basement or of any storey.
67	Plot/ Site	“Plot/ Site” means a parcel or piece of land enclosed by definite boundaries.

Sl.	Item	Definition
68	Corner Plot	“Corner plot” means a plot which is situated on two or more intersecting/meeting roads.
69	Island Plot	“Island Plot” means plot surrounded by roads on all four sides.
70	Plotted Development	“Plotted Development” – Type of layout wherein a stretch of developed land is divided into regular sized plots for uniform controlled building volumes.
71	Podium Parking	“Podium Parking” means the floor/floors from the floor above the ground level to the bottom surface of the beam for parking purposes under the building envelope line in which there should be provision of ramp for entry and exit of vehicles and in case of mechanized parking, there should be provision of entry and exit as per the actual design.
72	Porch	“Porch” - A covered surface supported on pillars or otherwise for the purpose of a pedestrian or vehicular approach to a building.
73	Prohibited Area	“Prohibited area” means any area specified or declared to be a prohibited area under section 20A of the Ancient Monuments and Archaeological Sites and Remains Act, 2010 (AMASR Act, 2010), and as defined under other relevant acts
74	Protected Monument	“Protected monument” means an ancient monument which is declared to be of national importance by or under the AMASR Act, 2010.
75	Redevelopment	“Redevelopment” refers to rehabilitating or constructing new infrastructure on a site by renovating or replacing existing uses with new development or construction, following an approved layout plan
76	Regulated Area	“Regulated area” means any area specified or declared under section 20B under the AMASR Act, 2010.
77	Refuge Area	“Refuge Area” means an unenclosed area within the building for a temporary use during egress. It generally serves as a staging area which is protected from the effect of fire and smoke.
78	Road/ Street	“Road/Street” - Any highway, street, lane, pathway, alley, stairway, passageway carriageway, footway, square, place or bridge whether a thorough-fare or over which the public have a right of passage or access or have passed and have access uninterruptedly for specified period, whether existing or proposed in any scheme and includes all bends, channels, ditches, storm water drains, culverts sidewalks, traffic islands, roadside trees and hedges, retaining walls fences, barriers and railing, street furniture within the street lines, which shall be a part of Right of Way
79	Road/ Street Level or Grade	“Road/Street Level or Grade” means the officially established elevation or grade of the centerline of street upon which a plot fronts, and if there is no officially established grade, the existing grade of street at its mid-point.
80	Road/ Street Line	“Road/Street Line” means the line defining the side limits of a road/ street.
81	Road Width	“Road Width or Width of Road/Street” means the overall width of the road or right-of-way or the whole extent of space within the boundaries of a road when applied to a new road/street as laid down in the city survey or development plan or prescribed road lines by any act of law and measured at right angles to the course or intended course of direction of such road.
82	Row Housing	“Row Housing” -A row of houses with only front, rear and interior open spaces.
83	Room Height	“Room Height” - The vertical distance measured from the finished floor surface to the finished ceiling surface. Where a finished ceiling is not provided, the underside of the joists or beams or tie beams shall determine the upper point of measurement for determining the head room.

Sl.	Item	Definition
84	Service Road/Lane	“Service Road/Lane” means a road that runs parallel to a main road, providing access for local traffic to properties along the main road, minimizing disruption to through traffic.
85	Service Floor	“Service floor” means a floor up to a maximum height of 2.10 meters from floor to beam between any two floors which is used only for pipes, service ducts etc. related to the building.
86	Service Apartment	“Service Apartment” means a fully furnished & self-contained apartment having cooking facilities (cooking/kitchen) and used for short-term stay.
87	Setback Line	“Set-back Line” means a line usually parallel to the plot boundaries or center line of a road (as specified in building construction & development byelaws) and laid down in each case by the Authority or as per recommendations of Master/Zonal Plan, beyond which nothing can be constructed towards the plot boundaries excepting with the permission of the Authority.
88	Shelter Fee	“Shelter Fee” refers to charges levied on private developers for the construction of housing projects, particularly those undertaken by Development Authority, Uttar Pradesh Housing and Development Board or other government agencies.
89	Special Amenity	“Special Amenity” includes projects of vital importance such as mass rapid transit system (metro rail, light rail, regional rapid rail, bus rapid transit system, ropeway, etc.), freeways (elevated roads, etc.), urban revitalization projects (river front development, etc.) or any other major infrastructure project which may be notified to be as such by the State Government.
90	Plot Depth	“Site Depth” or “Plot Depth” means the mean horizontal distance between the front and rear site boundaries.
91	Site Plan	“Site Plan” – A detailed Plan showing the proposed placement of structures, parking areas, open space, landscaping, and other development features, on a parcel of land, as required by specific sections of the development code.
92	Spiral Staircase	“Spiral Staircase” - A staircase forming continuous winding curve round a central point or axis provided in an open space having tread without risers.
93	Stilt Floor	“Stilt Floor” means a structure built on a plinth on pillars which is intended for the purpose of parking.
94	Storey	“Storey” - The portion of a building included between the surface of any floor and the surface of the floor next above it, or if there be no floor above it, then the space between any floor and the ceiling next above it.
95	Tot-lot	“Tot-lot” means a park or playground situated in a residential area and planned for the use of small children.
96	Unauthorised Construction	“Un-authorized Construction” means erection or re-erection, addition or alternations which is not approved or sanctioned by the Authority or in violation of Uttar Pradesh Urban Planning and Development Act, 1973.
97	Underground/ Overhead Tank	“Underground/Overhead Tank” - An installation constructed or placed for storage of water.
98	Ventilation	“Ventilation” - Supply of outside air into, or the removal of inside air from an enclosed space. (a). Natural Ventilation - Supply of outside air into a building through window or other openings due to wind outside and convection effects arising from temperature or vapour pressure differences (or both) between inside and outside of the building. (b). Positive Ventilation - the supply of outside air by means of a mechanical device, such as a fan. (c). Mechanical Ventilation - Supply of outside air either by positive ventilation

Sl.	Item	Definition
		or by infiltration by reduction of pressure inside due to exhaust of air, or by a combination of positive ventilation and exhaust of air.
99	Verandah	“Verandah” — A covered area with at least one side open to the outside with the exception of one-meter-high parapet on the upper floors to be provided on the open side.
100	Water Closet	“Water Closet (W.C)” - A water flushed plumbing fixture designed to receive human excrement directly from the user of the fixture. The term is used sometimes to designate the room or compartment in which the fixture is placed.
101	Window	“Window” - An opening to the outside other than a door, which provides all or part of the required natural light or ventilation or both to an interior space and not used as a means of egress/ingress.
102	Zonal Development Plan	“Zonal Development Plan” means a Plan formulated under Section 9 of the UP Urban Planning and Development Act, 1973 for development of zones which are part of the development area under the jurisdiction of Authority.

Note: Words or expressions used but not defined in these byelaws shall have the same meaning as assigned to them in the Master Plan/Zoning Regulations/Byelaws/Act/National Building Code.

1.3 Applicability of byelaws

- (i) These building byelaws shall be applicable to all building activities and read in conjunction with the master plan/development plan/regional plan/any other statutory plan in force, if any, and notifications, if any, with regard to the same and as amended from time to time. Till such time the revised byelaws are notified, these building byelaws will continue to be in force.
- (ii) These byelaws shall be applicable to the entire plot/building or the self-contained part, as the case may be, in case of development, redevelopment, sub-division or construction, reconstruction of building or alteration of a plot of land, to the remaining part after demolition and in case of land use change, to the entire part of the affected plot/building.
- (iii) Regarding such requirements/provisions related to development and construction which are not contained herein, the provisions of National Building Code and IS/BIS Code, as applicable, may be followed.

1.4 Difficulty Removal

In case of any clarification regarding any term or omission or contradiction and difficulty removal, a committee shall be constituted under the chairmanship of Principal Secretary, Housing and Urban Planning Department, whose decision shall be final. The Committee shall include Housing Commissioner, Director, Awas Bandhu, Vice Chairmen of any two Development Authorities nominated by the Chairman, and Chief Town and Country Planner (CTCP), who shall be the Member Convenor.

In case of any discrepancy in interpretation of the Hindi and English versions of these byelaws, the provisions of the latter shall prevail.

1.5 Effect on relevant Government Orders, Policies

From the date of coming into force of these byelaws, relevant clauses of the government orders, policies, rules, byelaws, etc., listed in *Appendix-1* shall be considered to have been amended to that extent as per the provisions of these byelaws. In case of any discrepancy between the provisions of the government orders, policies, rules, byelaws, etc., listed in *Appendix-1* and these byelaws, the provisions of the latter shall prevail.

1.6 Sectoral Policies

Provisions of various sectoral policies notified by the State Government from time to time which are at variance with these Byelaws shall prevail. Specific provisions in sectoral policies in relation to parameters like FAR, building height, Ancillary/ Mixed uses, if prescribed beyond the permissible limits of these byelaws, shall be valid. An indicative list of these policies is given below:

- Uttar Pradesh Warehousing & Logistics Policy 2022
- IT & ITeS Policy of Uttar Pradesh, 2022
- Uttar Pradesh Data centre Policy 2021
- Uttar Pradesh Tourism Policy 2022 (incl. Homestay/ Heritage Hotels)
- Uttar Pradesh Micro Small and Medium Enterprises Policy 2022 & Pledge Park
- Uttar Pradesh State Bio-Energy Policy 2022
- Uttar Pradesh Solar Energy Policy 2022
- Uttar Pradesh Textile and Garmenting Policy 2022
- The Indian Telegraph Right-of-way (Amendment) Rules, 2022